

TRAINING DOCUMENT · SKILLCLOUD ACADEMY

All names, data, and circumstances are fictional. For educational use only.

POSSIBLE REPRESENTATION OF MORE THAN ONE BUYER OR SELLER

— DISCLOSURE AND CONSENT

Reference: C.A.R. Form DA (Training Summary)

1. PROPERTY & PARTIES

Date Prepared:	September 24, 2025
Property Address:	4827 Rolando Blvd, San Diego, CA 92115
Seller(s):	Daniel Herrera and Carmen Herrera
Listing Agent:	Sofia Reyes (DRE #02156789)
Listing Brokerage:	Berkshire Hathaway HomeServices California Properties (DRE #01317331)

2. DISCLOSURE OF POSSIBLE DUAL AGENCY

Berkshire Hathaway HomeServices California Properties is a real estate brokerage that represents numerous clients in real estate transactions throughout the San Diego metropolitan area. It is possible that during the term of this listing, the Brokerage may also represent one or more prospective buyers interested in purchasing the property listed above.

What Is Dual Agency?

Dual agency occurs when the same brokerage firm (or the same individual agent) represents both the seller and the buyer in the same transaction. Under California Civil Code Section 2079.17, dual agency is permitted only with the informed written consent of both the seller and the buyer.

In a dual agency situation, the agent(s) and brokerage owe fiduciary duties to both parties. However, a dual agent may not, without the express written permission of the respective party:

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| ☒ Disclose to the Buyer that the Seller is willing to accept a price less than the listing price. | ☒ Disclose to the Seller that the Buyer is willing to pay a price greater than the offering price. |
| ☒ Disclose confidential motivations, urgency, or personal information of one party to the other. | ☒ Favor one party's interest over the other in negotiations or advice. |

3. POTENTIAL CONFLICTS OF INTEREST

Seller(s) should be aware of the following potential conflicts that may arise in a dual agency situation:

Reduced Advocacy: In a dual agency, the agent cannot advocate exclusively for the Seller as they would in a single-agency relationship. The agent must treat both parties fairly and honestly.

Information Limitations: The dual agent cannot share strategic information, pricing motivations, or negotiating positions between the parties without written consent.

Brokerage-Level Dual Agency: Even if different individual agents within the brokerage represent the seller and the buyer, the brokerage itself is a dual agent and must comply with dual agency requirements.

4. SELLER CONSENT

By signing below, Seller(s) acknowledge that they have read, understand, and consent to the possibility that Berkshire Hathaway HomeServices California Properties may act as a dual agent in this transaction, should a buyer represented by the same brokerage submit an offer on the property.

This consent does not obligate the Seller to accept any particular offer. Seller retains the right to accept, reject, or counter any offer regardless of the buyer's representation. Seller may also withdraw this consent at any time by providing written notice to the Listing Agent.

Daniel Herrera

Seller: Daniel Herrera · Date: 09/24/2025

Carmen Herrera

Seller: Carmen Herrera · Date: 09/24/2025

Sofia Reyes

Listing Agent: Sofia Reyes (DRE #02156789) · Date: 09/24/2025

4827 Rolando Blvd, San Diego, CA 92115 · Escrow #CTT-2025-07421
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